

Present :  
Mr. Justice Md. Jahangir Hossain  
And  
Mr. Justice Ashish Ranjan Das.

**Criminal Misc.No.5910 of 1999**

**In the matter of:**

Md. Mashiur Rahman  
..... Petitioner  
-Versus-  
The State  
..... Opposite party.  
No one appears  
.....For the accused- petitioner.  
Mr.S.M.Golam Mostofa, D.A.G.  
.  
... For the State

**Heard on: 12.01.2021.**

**Judgment on: 28.01.2021**

**Ashish Ranjan Das, J:**

Rule for quashment under section 561-A of the Code of Criminal Procedure (for short the Code) at the instance of the convict petitioner Md. Mashiur Rahman was issued on 02.11.1999 in the following terms :

*“Let the records be called for and a rule issue calling upon the Deputy Commissioner, Nawabganj to show cause as to why the judgment and order dated 29.06.1999 passed by the Sessions Judge, Nawabganj in Criminal Revision No.112 of 1986 affirming the order against the petitioner should not be quashed or such other or further order or orders passed as to this court*

*may seem fit and proper.*

However, none appeared to press this rule, although the matter has been occurring in the daily cause list over the period. The matter seems old enough for disposal on merit.

Short facts relevant for the purpose that could be gathered from the file are that the informant Ratia Chowdhurani used to be an employee under the convict petitioner in the Lattes rice mill for more than adequate. In course of time intimacy devolved between the two some 5 years before filing of the case. As a result the petitioner used to behave with the informant as his wife and have regular sexual intercourses. At one stage the petitioner borrowed Tk.1300/- from the informant and did not refund. Further the petitioner did not pay her wages for the preceding 6 months amounting to Tk. 2400/-. On the date of occurrence in the month of Falgun, 1397 B.S. as the informant pressed the petitioner for the money and also pressed the petitioner to marry her as he had promised. At this the petitioner became furious he beat the informant mercilessly and thereby committed an outrage of modesty, witnesses from all around converged there and witnessed the proceeding. It happens on 14.06.1991. Stating above the informant filed an ejahar with the local Nababganj police station.

After investigation charge sheet was submitted against the petitioner on 17.09.1991 attracting sections 498/420/323/354 of the Penal Code. Accordingly cognizance was taken and Magistrate, 2<sup>nd</sup>.

Class, Nawabganj bound to be charged against the petitioner under sections 498/420/323/354 of the Penal Code.

The trial court examined as many as 8 witnesses and found the case convincingly proved, as a result by judgment dated 20.05.1995 convicted the sole accused petitioner and sentenced him to suffer imprisonment for 3 months and 6 months respectively under sections 323/ 354 of the Penal Code. The convict petitioner preferred a criminal Appeal No. 05 of 1995, the learned Additional District Magistrate, by his judgment dated 31.10.1996 dismissed the appeal and the judgment of conviction and sentence passed by the learned Magistrate, 2<sup>nd</sup>. Class, Nawabganj was affirmed.

Being further aggrieved the convict petitioner filed criminal revision no. 112 of 1996 in the court of Sessions Judge, Nawabganj and by her judgment dated 29.06.1999, the learned Additional Sessions Judge, Nawabganj dismissed the revisional application and thereby the judgment of conviction and sentence remain upheld. Hence is this application under section 561-A of the Code of the Criminal Procedure (for short the court).

We have perused the materials annexed to the file, the 3 judgments chronologically pronounced by the learned Magistrate, 2<sup>nd</sup>. Class, learned Additional District Magistrate and learned Additional Sessions Judge have been annexed to the file.

It appears that it remain un-denied in this application that the informant used to be an employee under the convict petitioner in his

rice mills over the years. There was an allegation of extra marital sexual relationship and charge sheet was submitted but no such charge was framed or a conviction followed. The petitioner did not deny the fact that the informant Ratia used to be his employee over the years in his rice mills lived there.

Particularly P.Ws. 3,5 and 6 categorically stated that on the date of occurrence on 14.06.1991 the petitioner get the informant when fist and blows she fell on the ground with her breeding be located it happens since the informant had demanded her financial due that was in the allegation of the informant P.W.1 and P.W.2 stated that the woman has filed a little allegation before him to do justice but the petitioner fled away from the Salish.

As a ground it has been asserted in this application that the informant could not produce in partial witnesses and the judgment of conviction is based from the testimony of partisan witnesses for which it may be quashed but we fell to illicit from the judgments and this application itself as to on which point the evidences ought to have been blast aside. It has been by this time a settled principle in assessment of the evidences with respect to section 561-A of the Code, that a judgment of conviction may be quashed in the same is based of no evidence. In other words therefore it cannot be quashed if there is evidences however, shrouded discrepancies but this application for quashment itself emanates that this was not a matter of no evidence. As has been noted above it remain un-dined that the

informant used to be an employee under the petitioner in a rice mills and gave no clue that for what oblique purpose the informant could have bring such false allegation or the pws could have told lie. Therefore, we find this application for quashment meritless and the same is accordingly discharged.

The convict petitioner is directed to appear before the court of trial in order to serve out the remaining part of the sentence, if there be, within 30 days from the date of receipt of a copy of this order.

Ad-interim order passed earlier is hereby recalled and vacated.

Send down the L.C. R.

Md. Jahangir Hossain, J:

I agree.

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